

Jamil Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 August 2022 · Writ-C No. 23081 of 2022 (Allahabad) · WRIT - C No. - 23081 of 2022 · **Writ disposed; liberty to object under para 6.8 with stay of coercive action.**

HEADNOTE

Where a consumer challenged a Tehsildar recovery certificate for electricity dues, the Allahabad High Court, without examining merits, disposed of the writ by relegating the petitioner to an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing within a fixed time, and stayed coercive recovery meanwhile.

FACTUAL SUMMARY

Jamil Ahmad petitioned the Allahabad High Court to quash a Tehsildar, Bilaspur (Rampur) recovery certificate dated 26 May 2022 for Rs 7,84,373 and to mandamus the Sub Divisional Officer/Executive Engineer of the Electricity Department to decide his application concerning that recovery. Counsel for the licensee stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery as alternate remedy

HOLDING

Without expressing any opinion on merits, the writ challenging a recovery certificate is disposed of by giving the petitioner liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within four weeks; if so submitted, it shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action on the impugned demand shall be taken for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against a Tehsildar recovery certificate for electricity dues was disposed without merits by relegating the consumer to a para 6.8 objection, with a time-bound hearing and a limited stay of coercive action. ¶ 1

assessment-6.8-alternate-remedy The Court accepted the licensee's statement that an objection to the demand could be filed and decided in accordance with law, and therefore declined to examine the recovery on writ. ¶ 1

alternative-remedy-statutory-appeal-6.8 Statutory objection under para 6.8 was treated as the proper forum for the consumer's challenge to the impugned demand, in preference to certiorari and mandamus on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 26 MAY 2022 FOR RS 7,84,373

Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1